Maine State Government
Department of Administrative and Financial Services
Office of Information Technology (OIT)

Generative Artificial Intelligence (GenAI) Policy

1.0. Statement

1.1. The purpose of this policy is to specify Guiding Principles and Directives for responsible, transparent, and ethical use of GenAI within the Executive Branch of Maine State Government.

1.2. The rapid rise in GenAI technologies has been widely acknowledged as unprecedented. It holds significant potential for enhancing state government efficiency through automation, data analysis, streamlining processes, and optimizing resource allocation. By harnessing its potential, agencies can more efficiently identify areas of cost-saving measures and greatly enhance citizen services. However, the risks to privacy, security, the State's workforce, safety, government accountability, and fundamental human rights are just beginning to be understood. Many of these tools lack transparency in their design, making it challenging to assess the risks involved with their use. Furthermore, their development often involves the ingestion of data not vetted by the State. Absent appropriate safeguards, the use of these technologies opens the door to significant risks, including inaccuracies, algorithmic bias, unauthorized use of intellectual property, privacy and security vulnerabilities, severe bias, and false information. Additionally, GenAI can be leveraged by malicious cybercriminals for a number of nefarious purposes, including, but not limited to, opening new physical and digital security vulnerabilities, generating misinformation campaigns, and assisting with sophisticated social engineering attacks. Creating a transparent and collaborative GenAI deployment process and creating upskilling programs that support effective transition to this technology ensures the protection of Maine citizens and the data entrusted to the State.

2.0. Definitions

2.1. *Agentic AI:* A Generative Artificial Intelligence agent that autonomously (i.e., without human intervention) completes a defined workflow, end-to-end.

2.2. *AI Chatbot:* An Artificial Intelligence (AI) application that simulates human conversation and interaction through textual or aural communications.

2.3. *Bundled Application*: An end-user application whose primary purpose is NOT AI, but uses AI to deliver its primary purpose. Example: Canva is a end-user application for

graphical and video content. However, Canva bundles AI features to deliver its primary purpose.

2.4. *Embedded GenAI:* GenAI capabilities added into a tool or product that has previously been vetted and utilized by the State of Maine. The primary purpose of the tool or product is *not* GenAI.

2.5. *End-user AI Application*: An end-user application whose primary purpose is AI. Examples include Microsoft Copilot, OpenAI ChatGPT, Google Gemini, Anthropic Claude, Amazon Quick, etc.

2.6. *Generative Artificial Intelligence (GenAI):* Umbrella term for technologies that synthesize content mirroring human creativity. Encompassing machine learning and language models, GenAI generates human-like text, audio, imagery, video, and other digital content.

2.7. *Human in the Loop (HITL):* The mechanism where human judgment and decision-making are integrated into GenAI outputs. This approach ensures that while machines handle tasks with speed and efficiency, humans oversee, guide, and intervene when necessary.

2.8. *Human on the Loop (HOTL):* Applies to Agentic AI. By definition, an Agentic AI does not allow human intervention. Therefore, it does not allow HITL. Because the Agentic workflow will break if a human is inserted into the loop. Hence HOTL, where a human supervises the Agentic AI through statistical sampling, over time. The basic principle is the same as HITL in that the Human is still accountable for the performance of the Agentic AI. The human must continuously monitor outcomes, correct mistakes, and guide long-term improvement.

2.9. *Information Assets:* The full spectrum of all I.T. products, including business applications, system software, development tools, utilities, appliances, etc.

2.10. *Large Language Model (LLM):* A statistical engine that has been pre-trained upon massive amounts of text. LLMs are the foundations of Generative Artificial intelligence.

2.11. *Personal Productivity:* In the context of GenAI, this is any GenAI action that a person undertakes as part of their own work-deliverables. This includes actions like email summarization, report drafting, etc. The important distinction is that the direct end-consumer of the GenAI is the person themself. This is in contrast to any work-deliverable that extends beyond that individual person. Any GenAI work product that is shared by a workgroup, or is business-critical, is, by definition, not Personal Productivity.

2.12. *Private GenAI:* GenAI tools that are specific to an entity or organization and their data. Private GenAI tools are developed in-house by the State for its own use or

obtained from a third-party vendor. These systems are configured in a way that ensures the State's sensitive data is segmented from other Training Data and accessible to only the State or organization that owns it.

2.13. *Public GenAI:* GenAI tools that are openly available to multiple entities, organizations, or the general public and use widely sourced data from the internet, as well as data from users or customers to train the GenAI model. Public GenAI tools do not guarantee the privacy of data input by users, entities, or organizations. Additionally, Training Data and models are not owned by a public organization unless otherwise noted.

2.14. *Training Data:* Data used to train an LLM and other predictive algorithms.

3.0. Applicability

3.1. This Policy applies to:

3.1.1. The Maine State Executive Branch, including all agencies, departments, commissions, committees, authorities, divisions, boards, or other administrative units, that operate under the direction of the Governor;

3.1.2. All Personnel, both employees and contractors/vendors, within the Maine State Executive Branch;

3.1.3. All Information Assets in use within the Maine State Executive Branch; and

3.1.4. Information Assets from other branches of Maine State Government that are reliant upon the State Wide Area Network (WAN) for their operation.

4.0. Responsibilities

4.1. Agency Management:

4.1.1. Ensures that their personnel are aware of, and compliant with, this Policy;

4.1.2. Ensures that any approved GenAI usage is managed in compliance with this Policy; and

4.1.3. Collaborates with the Chief Information Officer (CIO) in executing and enforcing this Policy.

4.1.4. Informs OIT of relevant changes to existing-software under section 6.14

4.2. Chief Information Security Officer (CISO):

4.2.1. Resolves any conflicts under this Policy;

4.2.2. Determines the risk associated with GenAI tools/products; and

4.2.3. Collaborates with Agency Management in executing and enforcing this Policy.

4.3. Chief Information Officer (CIO):

4.3.1. Owns and interprets this Policy.

4.4. OIT Architecture and Policy:

4.4.1. Vets all net-new Information Assets before permitted usage.

4.5. OIT Account Managers:

4.5.1. Liaise with Agency Management in executing and enforcing this Policy.

5.0. Principles

5.1. The following Guiding Principles serve as guardrails for use of GenAI within the Executive Branch of Maine State Government. These Principles were informed by a variety of sources, including the NIST Artificial Intelligence Risk Management Framework (AI RMF 1.0)[1]. The following Principles are intended to guide personnel in the responsible development, deployment, and use of GenAI on the State's IT enterprise:

5.1.1. **Valid and Reliable:** The GenAI tool should consistently produce verifiable results and dependable outcomes under the conditions of expected use. Its robustness is equally essential, with the tool maintaining its performance under a variety of circumstances. The tool's accuracy must be evaluated and managed throughout the application lifecycle to ensure the tool's outputs are trustworthy and can be confidently relied upon.

5.1.2. **Safe, Secure, and Resilient:** Securing the State's Information Assets is essential to the State IT enterprise's mission. GenAI tools must be evaluated for their safety, security, and resiliency to ensure the confidentiality, integrity, and availability of State data. These tools must adhere to established information security policies, procedures, and best practices to mitigate risk and protect against unauthorized access and misuse of data.

5.1.3. **Accountable and Transparent:** GenAI tools should appropriately detail the processes for generating outputs and ensuring users have access to relevant information behind its decisions and operations. This includes traceability, explainability, communication regarding the sources of training data, and being able to attribute the tool's outputs to specific data subsets when necessary. Mechanisms will be employed to identify responsibilities, to provide accountability for the use of GenAI and its outcomes, and to be reviewed for compliance with applicable laws and regulations prior to use.

5.1.4. **Explainable and Interpretable:** The GenAI models and outputs are easily interpreted and explained to the greatest extent possible, ensuring that users can grasp both the mechanics (how) and the meaningful context (why) of the tool's decision and/or outputs, particularly regarding its impact on decisions and/or outputs impacting sensitive and confidential data.

5.1.5. **Privacy-Enhanced:** All applicable laws, regulations, policies, and procedures governing the privacy, quality, and integrity of State of Maine data must be applied in the development and use cases for all GenAI tools.

5.1.6. **Fair, with Harmful Bias Managed:** The GenAI tool should be under continuous scrutiny to identify and mitigate potential impacts arising from data, human or algorithmic bias, to the greatest extent possible. Given the potential for these tools to amplify existing biases, continuous monitoring and proactive interventions shall prioritize countermeasures to reduce the risk of harmful bias or discrimination and to uphold fairness.

[1] https://nvlpubs.nist.gov/nistpubs/ai/NIST.AI.100-1.pdf

6.0. Directives

6.1. This policy supersedes the Chief Information Officer's GenAI Moratorium.

6.2. This policy is anchored in the Governor's Artificial Intelligence Taskforce Report.[2]

6.3. All personnel must adhere to the Guiding Principles in 5.1 when using GenAI to enable the delivery of government services.

6.4. Prior to using a GenAI tool, personnel must complete a GenAI training, as determined by the CISO/CIO. In addition, personnel must complete GenAI training provided by MaineIT on an annual basis, as well as complete any applicable use-case-specific GenAI training, as determined by the CISO/CIO.

6.5. An output from a GenAI tool must *never* be:
- 6.5.1. Used without a review; or
- 6.5.2. Be assumed to be truthful, or accurate, or credible, or trustworthy; or
- 6.5.3. Be used as the sole source of reference; or
- 6.5.4. Be used *in total* to issue official statement (i.e. policy, legislation, or regulations); or
- 6.5.5. Be used to arrive at a final decision; or
- 6.5.6. Be used to impersonate individuals or organizations.

6.6. Should a GenAI tool be used to generate a batch output, then an appropriate Agency expert must use their domain knowledge to vet that batch output through appropriate statistical sampling techniques.

6.7. Before being disseminated, or otherwise acted upon, any output from a GenAI tool must *always* be:
- 6.7.1. Vetted by an appropriate agency human operator (HITL), and the organizational level/standing of the agency human operator should be commensurate with the significance/impact of the underlying content.

- 6.7.2. At a minimum, this vetting must account for accuracy, appropriateness, privacy, and security while meeting Section 6.9 of this policy.

6.8. For any dissemination (irrespective of whether internal or external) of content that incorporates GenAI output, an explicit disclosure/attribution must be made by the agency. Such a disclosure/attribution may be achieved by a notation in the footnote, or header, or any comparable means.
- 6.8.1. Example "Advised that XXX (a product with GenAI) was used to draft this content. However, I/we have verified the content, and remain accountable for it."

[2] https://www.maine.gov/future/sites/maine.gov.future/files/2025-10/_AI%20Report_DIGITAL.pdf

6.9. Sensitive or confidential information (TLP: Amber, Amber+Strict, or Red[3]) protected from disclosure under federal or state statutes or regulations, as well as any information protected from disclosure under Maine's Freedom of Access Act, must *never* be used as an input to a Public GenAI tool (as defined in 2.11), *never* be used in Public GenAI queries, and *never* be used for building or training Public GenAI tools. Furthermore, under no circumstances may personnel provide State of Maine data classified as non-public data (TLP: Amber, Amber+Strict or Red[4]) to a Public GenAI tool.

6.10. For a GenAI tool that allows such a feature, the history of usage must be disabled (i.e., turned off).

6.11. Material that is proprietary, or otherwise copyrighted, must *never* be used as an input to a GenAI tool.

6.12. GenAI must *never* be used by personnel for any activity that violates any federal or state laws, regulations, policies, or procedures.

6.13. Any vendor and/or contractor creating any Information Asset for the State of Maine Executive Branch must explicitly declare any usage of GenAI, especially the nature of the data used as input, and be subject to a risk assessment during the procurement process.

6.14. OIT will continuously maintain a webpage Generative AI Tools and Acceptable Use[5] (internal-only) that lists the GenAI tools and use cases that are currently approved for use by the Executive Branch of Maine State Government. Any such use is explicitly subject to *all* stipulations detailed in this Policy. The tools listed on the website are subject to removal, compensating controls, or conversion to an enterprise-based GenAI offering, at the discretion of the CISO such that risks to the confidentiality, integrity, and availability of State data are appropriately managed and rigorous information security standards and safeguards are in place to support scaling GenAI usage at the enterprise level. Any GenAI tool or use case *not* explicitly approved on this webpage is expressly prohibited from use within the Executive Branch of Maine State Government. To request consideration for an AI tool or use case, send an email to Enterprise.Architect@Maine.Gov.

6.15. A pre-approved GenAI tool (see above) may be used purely for Personal Productivity. Any usage of a pre-approved GenAI tool beyond Personal Productivity, and/or any proposed usage of a tool that is not pre-approved must be routed through the Enterprise Architecture vetting workflow.

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[3] https://www.maine.gov/oit/sites/maine.gov.oit/files/inline-files/DataClassificationPolicy.pdf
[4] https://www.maine.gov/oit/sites/maine.gov.oit/files/inline-files/DataClassificationPolicy.pdf
[5] https://stateofmaine.sharepoint.com/sites/MaineIT-Security/Shared%20Documents/Policies/GenAIToolsandAcceptableUse.pdf

6.16. Any application/tool/product/information asset that has previously been vetted and approved through the OIT New Technology workflow, but which now embeds GenAI, shall continue to stay approved, unless such an approval has been explicitly rescinded by the CISO/CIO.

6.17. A product containing Generative Artificial Intelligence (GenAI) capabilities may be evaluated and treated as non-GenAI in cases when all GenAI functionality can be fully disabled through documented administrative controls and is inaccessible to end users.

6.17.1. In these cases, because GenAI functionality may be enabled by administrative action, continued treatment as non-GenAI requires separation of duties, formal change management, and auditability.

6.17.2. Administrative authority to enable or expose GenAI features must be restricted, subject to prior security and risk approval, and periodically validated.

6.17.3. Unauthorized or unreviewed enablement of GenAI functionality constitutes a configuration control failure, at which point the product must be treated as GenAI-capable for risk, security, and compliance purposes.

6.18. Existing pre-approved tools must be reviewed at least annually, or more frequently if the agency is notified of changes to terms and conditions or platform changes that incorporate the use of GenAI, to ensure ongoing compliance with all state-set software usage and AI usage policies.

6.19. In terms of interactive GenAI assistants, Microsoft Copilot is the State's primary approved enterprise GenAI assistant. Legacy, pre-approved usage of ChatGPT Enterprise is grandfathered for now. Any agent, pre-built by Microsoft, and rolled out into the enterprise Copilot remains pre-approved. Anything that can be done with the built-in agents graphicially, via a widget, within the enterprise Office 365 tenant, remains pre-approved. Any GenAI built into the approved browsers remains to be pre-approved.

6.20. For bundled applications (as defined in 2.3), only mainstream, public, North America-based LLMs are eligible for consideration for State of Maine Executive Branch GenAI usage. The eligible LLMs are listed in OIT's Approved Tools and Acceptable Use Cases[6]. Approval of an underlying LLM does not constitute approval of any corresponding end-user application (as defined in 2.5) or service. End-user applications remain subject to review and approval by OIT. End user products approved by OIT will be listed: Approved Tools and Acceptable Use Cases[7].

6.21. AI prompts and other interactions with generative AI are generally considered transitory working materials when they are used solely for drafting, brainstorming, research, or similar purposes and have no continuing administrative, legal, fiscal, or

[6] https://www.maine.gov/oit/sites/maine.gov.oit/files/inline-files/GenAIToolsandAcceptableUse.pdf
[7] https://www.maine.gov/oit/sites/maine.gov.oit/files/inline-files/GenAIToolsandAcceptableUse.pdf

historical value. In these circumstances, they may be managed under General Schedule 5.6 (Transitory Correspondence)[8] or other applicable transitory records schedules. However, if an AI prompt or conversation documents agency decision-making, provides substantive instructions, establishes policy, supports official actions, or otherwise meets the definition of a government record under Maine law, it must be retained according to the applicable records retention schedule. The final agency work product, together with any supporting records required to document official business, constitutes the official record.

6.22. For any privacy concerns, absent an Agency Privacy Officer, contact the Enterprise Architect mailbox at Enterprise.Architect@Maine.gov.

7.0. Account Creation

7.1. GenAI tools often require that users enter an email address to register and create an account. Users who are utilizing an approved Public GenAI tool for State purposes must use their State e-mail address for registration and account creation purposes.

7.2. Once created, the account associated with a user's State e-mail address must be used solely for State business purposes. Personal use of Public GenAI from an account using a State e-mail is prohibited.

7.3. Upon completion of the registration and the account creation process, users must opt-out of data sharing and disable the chat history within the Public GenAI system. If unable to opt-out, the user must contact OIT at Enterprise.Architect@Maine.gov prior to using the Public GenAI system.

8.0. AI Chatbot Disclosure Requirements; Prohibited Conduct

8.1. Use of an AI chatbot in communications with consumers must include a clear and conspicuous disclosure that the consumer is interacting with an AI chatbot and not a human being.

8.1.1. Pursuant to Public Law 2025, chapter 294, a violation of this section constitutes a violation of the Maine Unfair Trade Practices Act.

8.2. The requirements of this section are intended to supplement the provisions of this policy and operate in addition to, and in conjunction with, the policy as a whole.

9.0. Compliance

9.1. For employees, failure to comply with this policy may result in progressive discipline, up to and including dismissal.

9.2. For contractors and non-State of Maine personnel, failure to comply may result in removal of the individual's ability to access and use State of Maine Information Assets. Employers of non-State of Maine personnel will be notified of any violations.

[8] https://www.maine.gov/sos/sites/maine.gov.sos/files/content/assets/GS5Correspondence.pdf

9.3 In addition, Public Law 2025, chapter 294 enacted new disclosure requirements governing communications with consumers through the use of AI chatbots. The law prohibits a person from using an AI chatbot to engage in trade or commerce with a consumer in a manner that may mislead or deceive a reasonable consumer into believing that the consumer is engaging with a human being unless the consumer is notified that the consumer is not engaging with a human being. A violation of this prohibition is a violation of the Maine Unfair Trade Practices Act.

10.0. Document Information

10.1. Initial Issue Date: July 19, 2024
10.2. Latest Revision Date: October 30, 2026
10.3. Point of Contact: PolicyTeam.OIT@Maine.Gov
10.4. Approved By: Chief Information Officer, OIT
10.5. Legal Citation: Title 5, Chapter 163: Office of Information Technology[9]
10.6. Waiver Process: Waiver Policy[10]
10.7. Distribution: Internet[11]

[9] https://legislature.maine.gov/statutes/5/title5ch163sec0.html
[10] https://www.maine.gov/oit/policies/waiver.pdf
[11] https://www.maine.gov/oit/policies-standards